

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #05	CCRB Case #: 202401500	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Friday, 02/09/2024 5:53 PM, Friday, 02/09/2024 5:58 PM, Friday, 02/09/2024 6:00 PM, Friday, 02/09/2024 6:08 PM	Location of Incident: 261 Kingston Avenue; 273 Kingston Avenue; en route to the 71st Precinct SH; 71st Precinct SH	18 Mo. SOL 8/9/2025	Precinct: 77
Date/Time CV Reported Tue, 02/13/2024 12:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/13/2024 12:00 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Joseph Loporto	09552	970671	071 PCT
2. Officers			
3. PO Matthew Ondrejack	02668	956989	077 PCT
4. PO Jeffrey Rosa	26080	964259	071 PCT
5. PO Jonathan Todman	20869	954375	077 PCT
6. PO Paul Beloy	15513	977057	071 PCT
7. SGT Junaid Saeed	01583	963733	071 PCT
8. PO Md Islam	01709	975557	077 PCT
9. PO Edward Bejaran	23182	971828	077 PCT
10. LT Adam Dumelle	00000	948001	077 PCT
11. PO Oliver Rojas	19493	959947	077 PCT
12. PO Zhane Walsh	07327	974644	071 PCT
13. PO Joseph Frisina	07265	961522	071 PCT
14. PO Oscar Portillo	13733	977336	071 PCT
15. SGT Allison Casanovas	03058	951593	071 PCT
16. DTS Denzil Trim	06530	956307	071 PCT
17. PO Liam Colwell	18240	973321	077 PCT
18. PO Conrado Abreugerez	06458	968208	071 PCT
19. PO Omar Delarosa	06614	964474	071 PCT
20. PO Hunter Nuzzi	27359	972142	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ana Tenorio	25418	946567	071 PCT
2. PO Briana London	19378	977594	077 PCT
3. PO Brandon March	10727	970680	077 PCT
4. PO Nigeria Gibsonsmalls	01334	972660	077 PCT
5. SGT Andrew Rosen	03640	953342	071 PCT
6. PO Shiva Somra	31967	955521	094 PCT
7. PO Anay Vicentegomez	16677	977446	077 PCT
8. PO Ashley Thomas	20107	975212	071 PCT
9. PO Shawn Wilson	05417	956336	071 PCT
10. PO Vincent Russo	25431	971214	071 PCT
11. PO Zoe Blue	13424	977480	071 PCT
12. PO Tyeisha Mays	04850	938970	071 PCT
13. PO Ebony Sneed	23385	971237	071 PCT
14. PO Marcus Thomas	16554	962133	071 PCT
15. PO Brian Kalt	08485	967133	077 PCT
16. SGT Jonathan Cotter	05048	953785	077 PCT
17. PO Katherine Hernandez	26797	968485	077 PCT
18. PO Mmostayen Faysal	03930	960521	077 PCT
19. PO Jeangardy Joseph	03597	975570	077 PCT
20. PO Jason Schreckenstein	01340	956247	INT FIO PRG
21. DT3 Mirsad Radoncic	07638	967272	INT FIO PRG

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Junaaid Saeed	Force: In front of 261 Kingston Avenue in Brooklyn, Sergeant Junaaid Saeed used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Jeffrey Rosa	Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Jeffrey Rosa used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Joseph Loporto	Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Jeffrey Rosa	Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Jeffrey Rosa used a non-lethal restraining device on § 87(2)(b)	D . Within NYPD Guidelines
E . LT Adam Dumelle	Force: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Edward Bejaran	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Edward Bejaran used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Liam Colwell	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Liam Colwell used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Md Islam	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Md Islam used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Joseph Frisina	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Frisina used physical force against § 87(2)(b)	I . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
J . PO Paul Beloy	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Paul Beloy used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . LT Adam Dumelle	Force: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . PO Joseph Frisina	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Frisina used physical force against § 87(2)(b)	L . Within NYPD Guidelines
M . Officers	Force: In front of 273 Kingston Avenue in Brooklyn, officers used physical force against § 87(2)(b)	M . Officer(s) Unidentified
N . SGT Junaid Saeed	Force: In front of 273 Kingston Avenue in Brooklyn, Sergeant Junaid Saeed used physical force against § 87(2)(b)	N . Within NYPD Guidelines
O . PO Joseph Loporto	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)	O . Within NYPD Guidelines
P . PO Conrado Abreguez	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Conrado Abreguez used physical force against § 87(2)(b)	P . Within NYPD Guidelines
Q . DTS Denzil Trim	Force: In front of 273 Kingston Avenue in Brooklyn, Detective Denzil Trim used physical force against § 87(2)(b)	Q . Within NYPD Guidelines
R . PO Omar Delarosa	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Omar Delarosa used physical force against § 87(2)(b)	R . Within NYPD Guidelines
S . PO Hunter Nuzzi	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Hunter Nuzzi used physical force against § 87(2)(b)	S . Within NYPD Guidelines
T . PO Oliver Rojas	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Oliver Rojas used physical force against § 87(2)(b)	T . Within NYPD Guidelines
U . PO Jonathan Todman	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Jonathan Todman used physical force against § 87(2)(b)	U . Within NYPD Guidelines
V . SGT Junaid Saeed	Force: In front of 273 Kingston Avenue in Brooklyn, Sergeant Junaid Saeed used physical force against § 87(2)(b)	V . Within NYPD Guidelines
W . PO Joseph Loporto	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)	W . Within NYPD Guidelines
X . DTS Denzil Trim	Force: In front of 273 Kingston Avenue in Brooklyn, Detective Denzil Trim used physical force against § 87(2)(b)	X . Within NYPD Guidelines
Y . PO Hunter Nuzzi	Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Hunter Nuzzi used physical force against § 87(2)(b)	Y . Within NYPD Guidelines
Z . Officers	Force: In front of 273 Kingston Avenue in Brooklyn, officers used physical force against § 87(2)(b)	Z . Unfounded
AA. LT Adam Dumelle	Discourtesy: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle spoke discourteously to an individual.	AA. Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
AB. SGT Allison Casanovas	Abuse: En route to the 71st Precinct stationhouse, Sergeant Allison Casanovas refused to provide her name to § 87(2)(b)	AB. Unfounded
AC. SGT Allison Casanovas	Abuse: En route to the 71st Precinct stationhouse, Sergeant Allison Casanovas refused to provide her shield number to § 87(2)(b)	AC. Unfounded
AD. PO Oscar Portillo	Abuse: En route to the 71st Precinct stationhouse, Police Officer Oscar Portillo refused to provide his name to § 87(2)(b)	AD. Unfounded
AE. PO Oscar Portillo	Abuse: En route to the 71st Precinct stationhouse, Police Officer Oscar Portillo refused to provide his shield number to § 87(2)(b)	AE. Unfounded
AF. PO Jeffrey Rosa	Abuse: At the 71st Precinct stationhouse, Police Officer Jeffrey Rosa strip-searched § 87(2)(b)	AF. Substantiated
AG. PO Jeffrey Rosa	Abuse: At the 71st Precinct stationhouse, Police Officer Jeffrey Rosa improperly used his body-worn camera.	AG. Substantiated
AH. PO Zhane Walsh	Abuse: At the 71st Precinct stationhouse, Police Officer Zhane Walsh threatened § 87(2)(b) with the use of force.	AH. Substantiated
AI. PO Zhane Walsh	Off. Language: At the 71st Precinct stationhouse, Police Officer Zhane Walsh made remarks to § 87(2)(b) based upon race.	AI. Substantiated
AJ. PO Zhane Walsh	Off. Language: At the 71st Precinct stationhouse, Police Officer Zhane Walsh made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	AJ. Substantiated
AK. PO Zhane Walsh	Discourtesy: At the 71st Precinct stationhouse, Police Officer Zhane Walsh spoke discourteously to § 87(2)(b)	AK. Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On February 13, 2024, § 87(2)(b) filed this complaint by phone with the CCRB. On February 14, 2024, § 87(2)(b) also filed this complaint by phone with the CCRB. On February 9, 2024, Sgt. Junaid Saeed, of the 71st Precinct, reported multiple uses of force to IAB, generating original log #§ 87(2)(b). IAB did not send this log as a referral to the CCRB.

On February 9, 2024, at approximately 5:53 p.m., Sgt. Saeed, PO Jeffrey Rosa, and PO Joseph Loporto, of the 71st Precinct Neighborhood Safety Team, attempted to apprehend § 87(2)(b) in front of 261 Kingston Avenue in Brooklyn for selling narcotics. Sgt. Saeed, PO Rosa, and PO Loporto grappled with § 87(2)(b) (**Allegations A-C: Force, within NYPD guidelines**). PO Rosa used a Taser against § 87(2)(b) (**Allegation D: Force, within NYPD guidelines**). A large crowd of civilians began to form, including § 87(2)(b) and § 87(2)(b) who are two employees from a violence interrupter organization called Save Our Streets (SOS) with an office across the street from the incident location. At approximately 5:58 p.m., in front of 273 Kingston Avenue, Lt. Adam Dumelle, PO Edward Bejaran, PO Liam Colwell, and PO Md Islam, of the 77th Precinct, along with PO Joseph Frisina and PO Paul Beloy, of the 71st Precinct, grappled with § 87(2)(b) to arrest him (**Allegations E-J: Force, within NYPD guidelines**). Lt. Dumelle and PO Frisina used hand strikes against § 87(2)(b) (**Allegations K-L: Force, within NYPD guidelines**). Officers allegedly kicked § 87(2)(b) (**Allegation M: Force, officer(s) unidentified**). Sgt. Saeed and PO Loporto, along with PO Conrado Abreugerez, Det. Denzil Trim, PO Omar Delarosa, and PO Hunter Nuzzi, of the 71st Precinct, and PO Oliver Rojas and PO Jonathan Todman, of the 77th Precinct, grappled with § 87(2)(b) to arrest him (**Allegations N-U: Force, within NYPD guidelines**). Sgt. Saeed, PO Loporto, Det. Trim, and PO Nuzzi used hand strikes against § 87(2)(b) (**Allegations V-Y: Force, within NYPD guidelines**). Officers allegedly used hand strikes and foot strikes against § 87(2)(b) after he was handcuffed (**Allegation Z: Force, unfounded**). Lt. Dumelle made discourteous remarks to an unidentified civilian (**Allegation AA: Discourtesy, substantiated**).

At approximately 6 p.m., while en route to the 71st Precinct stationhouse, Sgt. Allison Casanovas and PO Oscar Portillo, of the 71st Precinct, allegedly refused to provide their names and shield numbers to § 87(2)(b) (**Allegations AB-AE: Abuse of Authority, unfounded**). At approximately 6:08 p.m., at the 71st Precinct stationhouse, PO Rosa strip searched § 87(2)(b) (**Allegation AF: Abuse of Authority, substantiated**). PO Rosa improperly used his body-worn camera (BWC) (**Allegation AG: Abuse of Authority, substantiated**). PO Zhane Walsh, of the 71st Precinct, told § 87(2)(b) “Next time I see you, Imma whoop your ass” (**Allegation AH: Abuse of Authority, substantiated**). PO Walsh also called § 87(2)(b) a “bitch ass nigga” (**Allegations AI-AJ: Offensive Language, substantiated; Allegation AK: Discourtesy, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was charged with criminal possession of a controlled substance, tampering with physical evidence, resisting arrest, obstructing governmental administration, and disorderly conduct (BR 01). § 87(2)(b) and § 87(2)(b) were released with summonses for disorderly conduct (BR 02-03).

The investigation obtained BWC footage (BR 04), TARU footage from two nearby intersections (BR 05-08), cell phone footage (BR 09-12), and private surveillance footage (BR 13-19) (all summarized in BR 20). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

§ 87(2)(g)

IAB IU 32 conducted a concurrent investigation that solely focused on use of force allegations against Sgt. Saeed, PO Loporto, PO Rosa, PO Islam, Det. Trim, PO Abreugerez, and PO Delarosa (BR 25). All the force allegations were exonerated or closed as “Information and Intelligence.”

Sgt. Casanovas has since been reassigned to IAB IU 32. PO Todman has since been promoted to sergeant and reassigned to the 9th Precinct. PO Rosa has since been reassigned to the Criminal Intelligence Section.

Findings and Recommendations

Allegation (A) Force: In front of 261 Kingston Avenue in Brooklyn, Sergeant Junaid Saeed used physical force against § 87(2)(b)

Allegation (B) Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Jeffrey Rosa used physical force against § 87(2)(b)

Allegation (C) Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)

Allegation (D) Force: In front of 261 Kingston Avenue in Brooklyn, Police Officer Jeffrey Rosa used a non-lethal restraining device on § 87(2)(b)

It is undisputed that an officer at the 71st Precinct stationhouse watched real-time video footage from an ARGUS (TARU) pole camera showing § 87(2)(b) engaging in hand-to-hand narcotics transactions. Sgt. Saeed, PO Rosa, and PO Loporto went to the location to arrest § 87(2)(b). Due to § 87(2)(b) resistance and the large crowd that was forming in the area, they radioed an urgent request for assistance (“10-13” radio code), which prompted a very large group of officers from the 71st Precinct and 77th Precinct to respond.

TARU footage from both intersections (BR 05-08), both of which have partially obstructed views, shows § 87(2)(b) standing in front of Fine Fare supermarket. At 13:26 (BR 07), § 87(2)(b) appears to engage in a hand-to-hand transaction, insofar as a male individual hands an object to § 87(2)(b) and § 87(2)(b) hands an object to the man. The items being exchanged are not clearly visible due to the camera angle and manner in which they are concealing the items. At 24:04, Sgt. Saeed, PO Loporto, and PO Rosa approach § 87(2)(b) and a struggle ensues.

BWC footage shows the officers approaching § 87(2)(b) (BR 38, at 00:57; BR 39, at 00:57; BR 40, at 00:58). Sgt. Saeed tells § 87(2)(b) to put his hands behind his back and the officers grab his arms. A struggle immediately ensues as § 87(2)(b) resists by pulling away, tensing his arms, and leaning over so that the officers cannot handcuff him. Due to the camera angle and chaotic nature of the struggle, the BWC footage does not maintain a clear view of the arrest. Within 20 seconds, § 87(2)(b) ends up on the ground (BR 38 at 01:20; BR 40, at 01:15). § 87(2)(b) continues resisting by tensing his body and moving around. No officer is depicted using hand strikes against § 87(2)(b). In PO Rosa’s BWC footage (BR 40, at 01:46), PO Rosa says, “Imma tase you,” while holding a Taser against § 87(2)(b) back. § 87(2)(b) is partially positioned underneath the supermarket security gate and pulls his arm in front of his body. Multiple onlookers yell and surround the officers in very close proximity. At 02:29, PO Rosa places his Taser against § 87(2)(b) left shoulder and tells him that he will get tasered. At 02:34, PO Rosa uses his Taser in drive stun mode against § 87(2)(b). The officers handcuff § 87(2)(b). At 03:12, PO Rosa picks up a small bag containing a white substance and two colorful plastic bags from the ground. Later at

the stationhouse, Sgt. Saeed asks § 87(2)(b) if he needs medical attention, but he does not respond (BR 41, at 02:31). § 87(2)(b) is sweating profusely, but he does not have any visible injuries.

§ 87(2)(b) (BR 26) and § 87(2)(b) (BR 28) both recounted approaching the ongoing arrest and seeing officers grappling with § 87(2)(b) and forcing him to the ground.

The investigation attempted to contact § 87(2)(b) but was unable to reach him to obtain a statement.

PO Rosa's statement (BR 30) was consistent with the video footage. PO Rosa stated that he watched a live feed of ARGUS footage showing § 87(2)(b) engaging in three hand-to-hand transactions. PO Rosa told Sgt. Saeed what he saw in the footage and that they should see if § 87(2)(b) was still at the location to apprehend him. Once on scene, § 87(2)(b) resisted by tensing his arms, flailing his arms, and trying to get away from the officers. During the scuffle, Sgt. Saeed, PO Loporto, and § 87(2)(b) lost their balance and all went to the ground. § 87(2)(b) continued resisting by tensing and keeping his hands clasped in front of his body. PO Rosa deployed a Taser in drive stun mode on § 87(2)(b) shoulder, given that § 87(2)(b) was resisting and was not complying with the officers' commands. PO Rosa used the Taser in drive stun mode because they were in close proximity and if he had shot him with the prongs, it may have hit other officers or civilians. PO Rosa did not observe Sgt. Saeed or PO Loporto use hand strikes against § 87(2)(b). PO Rosa denied using hand strikes against § 87(2)(b). PO Rosa recovered ecstasy pills from the entryway of the store, and two or three bags of loose marijuana on the ground.

Sgt. Saeed's statement (BR 31-32) was generally consistent with PO Rosa's, except that he stated that precinct Field Intelligence Officers informed him that they saw § 87(2)(b) engage in a hand-to-hand transaction in the ARGUS footage. Once on scene, § 87(2)(b) resisted by blading his body and locking his hands in front of his body. § 87(2)(b) was strong and due to § 87(2)(b) and the officers' momentum, they fell to the ground. Sgt. Saeed and the other officers tried to grab § 87(2)(b) hands and were wrestling with him. Sgt. Saeed did not recall whether he, PO Rosa, or PO Loporto used any hand strikes against § 87(2)(b). Upon reviewing the TRI, Sgt. Saeed stated that he did not recall using a hand strike against § 87(2)(b) but if the TRI said that he did, then he probably did.

It was not necessary to interview PO Loporto to reach dispositions for these allegations.

The TRI Reports (BR 33) detailed that the officers used a forcible takedown, that Sgt. Saeed and PO Loporto used hand strikes, and PO Rosa used a Taser in drive stun mode.

§ 87(2)(b) arrest report states that he is 6'3" tall and weighs 190 pounds (BR 01).

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. Any use of force must be reasonable under the circumstances and not excessive. In determining whether the use of force is reasonable, members of the service should consider the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, officers, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of officers; size, age, and condition of the subject in comparison to the officers; subject's violent history; presence of hostile crowd or agitators; and subject apparently under the influence of a stimulant or narcotic that would affect pain tolerance or increase the likelihood of violence. Patrol Guide Procedure 221-01 (BR 34).

A Taser should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others. Active resisting includes physically evasive movements to defeat a member of the service's attempt at control or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Patrol Guide Procedure 221-08 (BR 35).

§ 87(2)(g)

§ 87(2)(b) actively resisted by pulling away, tensing his body, leaning over, moving his body, and pulling his arms in front of his body; § 87(2)(b) appeared to have a great deal of strength as it took multiple officers a few minutes to restrain him; they were positioned in a tight corner; and there were multiple onlookers yelling and standing in very close proximity. § 87(2)(g)

§ 87(2)(b) While the video footage was inconclusive and Sgt. Saeed and PO Rosa either denied or did not recall whether they or their partners used hand strikes as noted in the TRI Reports, § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A-D** be closed as within NYPD guidelines.

Allegation (E) Force: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle used physical force against § 87(2)(b)

Allegation (F) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Edward Bejaran used physical force against § 87(2)(b)

Allegation (G) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Liam Colwell used physical force against § 87(2)(b)

Allegation (H) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Md Islam used physical force against § 87(2)(b)

Allegation (I) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Frisina used physical force against § 87(2)(b)

Allegation (J) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Paul Beloy used physical force against § 87(2)(b)

Allegation (K) Force: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle used physical force against § 87(2)(b)

Allegation (L) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Frisina used physical force against § 87(2)(b)

Allegation (M) Force: In front of 273 Kingston Avenue in Brooklyn, officers used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) walked down the sidewalk with a group of civilians who were following along as officers led § 87(2)(b) to a police vehicle. § 87(2)(b) had an interaction with Lt. Dumelle that led to his arrest.

§ 87(2)(b) recounted that while on the sidewalk, he began walking toward an opening in the scaffolding, to see what was happening in the street with § 87(2)(b) Lt. Dumelle and another officer looked at him but did not say anything. Lt. Dumelle then extended both of his arms outward to his sides (in a "T" shape) and used his forearm to shove § 87(2)(b) chest, to prevent him from walking forward. Lt. Dumelle's shove caused § 87(2)(b) to step back, and other officers rushed toward him. PO Bejaran grabbed § 87(2)(b) around his shoulders. Multiple officers then

started punching § 87(2)(b) from behind, on the right side of his head, his right shoulder, the left side of his face, and his arm. It felt like the punches “came from everywhere” and § 87(2)(b) could not estimate how many times officers punched him. He was not sure which officers struck him. The officers told § 87(2)(b) not to move and to stop resisting, but he was not intentionally moving his body. An officer (or officers) then swept § 87(2)(b) off his feet and onto the ground. He was not sure how many officers swept him off his feet or which officers did so. He landed in a “hard” manner on his right elbow and right side. § 87(2)(b) felt pain in his right arm due to a prior injury, so he was slow to remove his right arm from underneath his body. § 87(2)(b) felt two or three forceful kicks to his right shin. § 87(2)(b) felt two or three officers restraining him. § 87(2)(b) was not resisting or moving his body while on the ground. He did not hit or strike any police officers at any point. The officers quickly handcuffed § 87(2)(b) and picked him up from the ground.

§ 87(2)(a)

§ 87(2)(b) reported sustaining a bruise on his left wrist from the handcuffs, pain throughout his body from being punched, and pain and swelling to his right arm. § 87(2)(b) did not provide any photographs of his injuries. § 87(2)(b) records from § 87(2)(b) Center (*see Privileged Records*) detailed that his chief complaint was bilateral wrist pain and arm pain after an altercation with officers. § 87(2)(a) – PHL 18(6)

§ 87(2)(a)

In sum, CCTV, TARU footage, and Lt. Dumelle’s BWC footage (BR 43, at 00:13; BR 05, at 28:09; BR 42, at 03:00) show multiple individuals, including § 87(2)(b) with the red cap and fur-trimmed hooded jacket, walking down the sidewalk. Lt. Dumelle outstretches his arms to stop the individuals from moving forward. There are many civilians and officers in the area, many of whom are raising their voices and going back and forth with each other. Multiple officers tell the group of civilians to back up. § 87(2)(b) tries to walk past Lt. Dumelle, but he is unable to do so because Lt. Dumelle’s right arm is still outstretched. § 87(2)(b) leans back, away from Lt. Dumelle, but it is unclear whether Lt. Dumelle pushes him or he takes a step back. § 87(2)(b) then makes a sudden arm movement with his right arm toward Lt. Dumelle (BR 43, at 00:14). Lt. Dumelle reaches out to grab § 87(2)(b) and § 87(2)(b) grabs Lt. Dumelle’s right wrist (BR 43, at 00:15; BR 42, at 03:15). Lt. Dumelle pulls out of § 87(2)(b) grasp as § 87(2)(b) takes a few steps back from Lt. Dumelle. PO Bejaran then rushes forward and grabs § 87(2)(b)

Lt. Dumelle’s and PO Bejaran’s BWCs fall to the ground and capture a ground-level view of the struggle that ensues (BR 42, at 03:21; BR 44, at 03:37). At this point, there are approximately 38 officers on scene and several officers rush over to assist with the arrest. The arrest takes place in a tight corner between scaffolding and a storefront wall. Due to these factors and the chaotic nature of the struggle, the BWC footage does not maintain a clear view of the entire arrest. In sum, the footage shows a great deal of movement and that Lt. Dumelle, PO Bejaran, PO Frisina, PO Islam, and PO Beloy reach for and try to grab § 87(2)(b). There are a few civilians in extremely close proximity to the arrest and there is a large crowd in the area, yelling and questioning the officers.

§ 87(2)(b) appears to be tensing his body. Lt. Dumelle uses two consecutive hand strikes with his left hand that appear to be aimed toward § 87(2)(b) torso (BR 42, at 03:21). PO Frisina reaches over the scaffolding and uses multiple hand strikes against § 87(2)(b). It is not visible where he strikes § 87(2)(b) but a thudding noise is audible (BR 45, at 01:49; BR 46, at 01:54).

An officer says, “Take him to the ground, take him to the ground,” but it is not visible how the officers take § 87(2)(b) to the ground. Once on the ground, there continues to be a great deal of chaotic movement. An officer says, “Give me your fucking arm.” PO Frisina and PO Bejaran hold § 87(2)(b) arm as the officers try to grab § 87(2)(b) other arm (BR 45, at 01:55; BR 46, at 02:06). § 87(2)(b) says, “My arm is broke already...this arm is broke already, watch my arm, yo I’m not fighting y’all [sic],” and an officer replies, “Oh yeah? Doesn’t look like that.” An officer yells, “Put your arm behind your back,” and § 87(2)(b) replies that he cannot. An officer says that § 87(2)(b) is resisting, which § 87(2)(b) denies. PO Colwell restrains § 87(2)(b) by sitting atop § 87(2)(b) rear end (BR 47, at 02:16). PO Colwell handcuffs § 87(2)(b). Aside from Lt. Dumelle and PO Frisina, no officer is depicted using hand strikes against § 87(2)(b). No officer is depicted using foot strikes against § 87(2)(b).

Lt. Dumelle stated (BR 36) that as he assisted with crowd control, a couple of individuals tried to get past the officers and into the street, closer to the police vehicle where officers were leading § 87(2)(b). Lt. Dumelle and other officers repeatedly told the individuals to stay back and to back up. Lt. Dumelle wanted to stop them from getting closer to § 87(2)(b) because officers needed to safely lodge § 87(2)(b) in a vehicle. Lt. Dumelle outstretched his right arm to try to stop § 87(2)(b) from moving into the street, and § 87(2)(b) walked into Lt. Dumelle’s arm. § 87(2)(b) then grabbed Lt. Dumelle’s right wrist, and Lt. Dumelle pulled his arm away from § 87(2)(b) grasp. As Lt. Dumelle pulled out of § 87(2)(b) grasp, § 87(2)(b) threw an upward punch at Lt. Dumelle with his right hand, across Lt. Dumelle’s body and toward his face. Lt. Dumelle took a step back and § 87(2)(b) punch did not make contact with him. Lt. Dumelle considered § 87(2)(b) under arrest as soon as § 87(2)(b) threw a punch toward him.

Lt. Dumelle and PO Bejaran went to grab § 87(2)(b). Lt. Dumelle did not recall where he grabbed § 87(2)(b) as multiple officers quickly converged upon § 87(2)(b). Lt. Dumelle tried to move § 87(2)(b) arms behind his back, but they were in a tight area between scaffolding and the building, so the officers brought § 87(2)(b) to the ground. Lt. Dumelle did not recall whether he or any officers used hand strikes against § 87(2)(b) while they were still upright. Lt. Dumelle did not recall how the officers brought § 87(2)(b) to the ground. Lt. Dumelle and the officers tried to move § 87(2)(b) arms behind his back, but they struggled because § 87(2)(b) was squirming, flailing his arms, and trying to tuck his arms underneath his body. Lt. Dumelle did not recall whether any officers used hand strikes against § 87(2)(b) while he was on the ground. Lt. Dumelle did not recall seeing any officers kick § 87(2)(b). Lt. Dumelle denied kicking § 87(2)(b). Eventually, the officers handcuffed § 87(2)(b).

Upon watching the portion of PO Bejaran’s BWC footage which appears to show him throwing punches at § 87(2)(b) torso, Lt. Dumelle maintained that he did not recall using any hand strikes against § 87(2)(b). Instead, he described the footage as showing him repeatedly reaching to try to grab § 87(2)(b). Lt. Dumelle tried to grab § 87(2)(b) arm, but § 87(2)(b) pulled away, causing his arm to recoil, and Lt. Dumelle tried to grab at § 87(2)(b) hand again. Lt. Dumelle confirmed that he was the officer making the arm movements and denied using hand strikes against § 87(2)(b).

PO Frisina’s statement (BR 37) was generally consistent with the BWC footage and Lt. Dumelle’s statement. PO Frisina stated that he saw § 87(2)(b) throw a punch at Lt. Dumelle, though he

§ 87(2)(g) It is therefore recommended that Allegation M be closed as officer(s) unidentified.

Allegation (N) Force: In front of 273 Kingston Avenue in Brooklyn, Sergeant Junaid Saeed used physical force against § 87(2)(b)

Allegation (O) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)

Allegation (P) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Conrado Abreugerez used physical force against § 87(2)(b)

Allegation (Q) Force: In front of 273 Kingston Avenue in Brooklyn, Detective Denzil Trim used physical force against § 87(2)(b)

Allegation (R) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Omar Delarosa used physical force against § 87(2)(b)

Allegation (S) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Hunter Nuzzi used physical force against § 87(2)(b)

Allegation (T) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Oliver Rojas used physical force against § 87(2)(b)

Allegation (U) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Jonathan Todman used physical force against § 87(2)(b)

Allegation (V) Force: In front of 273 Kingston Avenue in Brooklyn, Sergeant Junaid Saeed used physical force against § 87(2)(b)

Allegation (W) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Joseph Loporto used physical force against § 87(2)(b)

Allegation (X) Force: In front of 273 Kingston Avenue in Brooklyn, Detective Denzil Trim used physical force against § 87(2)(b)

Allegation (Y) Force: In front of 273 Kingston Avenue in Brooklyn, Police Officer Hunter Nuzzi used physical force against § 87(2)(b)

Allegation (Z) Force: In front of 273 Kingston Avenue in Brooklyn, officers used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) rushed toward the area where he saw officers arresting § 87(2)(b) and had a physical interaction with Sgt. Saeed, which led to his arrest.

§ 87(2)(b) recounted that he heard a loud commotion and saw officers “throw[ing]” § 87(2)(b) to the ground. § 87(2)(b) could not describe how the officers threw him to the ground. § 87(2)(b) got caught in the mix with officers who were running toward § 87(2)(b) and began running with them. Once § 87(2)(b) got to the sidewalk, Sgt. Saeed immediately stopped him by placing a palm on his chest and grabbing his collar. Sgt. Saeed may have said something such as “stop.” An officer then immediately punched § 87(2)(b) from behind on the right side of his face, underneath his eye, approximately three times. § 87(2)(b) did not see which officer punched him, but he knew it was not Sgt. Saeed. As the officers held § 87(2)(b) arms, several officers swung at him and he felt multiple punches to his neck, back, and head. § 87(2)(b) could not see which officers were hitting him. At least two officers, including Sgt. Saeed, took § 87(2)(b) to the ground. It happened very quickly, and § 87(2)(b) could not describe how the officers brought him to the ground.

§ 87(2)(b) landed face down on the ground, with sufficient force to cause a laceration on his forehead. The officers immediately handcuffed § 87(2)(b) was not fighting the officers. At least six to seven officers restrained § 87(2)(b) against the ground. For approximately 30 seconds after § 87(2)(b) was handcuffed, the officers kept using force against him. An officer, whom § 87(2)(b) could not see, punched him three times on the left side of his

face. An officer also used multiple rapid-fire uppercut punches to the left side of § 87(2)(b) ribs. Officers also punched § 87(2)(b) on the back of his neck, his upper back, and the back and side of his head. § 87(2)(b) believed officers punched him approximately 28 times in total. Officers also kicked § 87(2)(b) between three to six times on his lower back, right side, and right leg. § 87(2)(b) was not sure which officers punched and kicked him. While he was on the ground, officers told § 87(2)(b) to “stop resisting,” even though he was not resisting or moving around.

§ 87(2)(a)

§ 87(2)(b) reported sustaining bruising to his left ribs from the officer punching his ribs, bruising to both knees from being taken down to the ground, a laceration on his left temple from when his head hit the ground, a jammed finger, and minor soreness in his leg. Photographs of § 87(2)(b) injuries showed the laceration to his forehead, minor scrapes on his left knee, and two of his fingers taped together with medical tape (BR 62). § 87(2)(b) records from § 87(2)(b) Hospital (see *Privileged Records*) detailed that § 87(2)(b) reported being hit on the head and having a headache, left rib pain, and pain in both legs. § 87(2)(b) reported that he was “stomped out” by the police. He had a 3mm laceration with dried blood over his left eyebrow. § 87(2)(a)

§ 87(2)(b) stated that he did not know that § 87(2)(b) was also arrested until he saw him at the stationhouse. § 87(2)(a)

TARU footage (BR 05, at 28:05) shows officers leading § 87(2)(b) toward a police vehicle. At 28:09, Lt. Dumelle outstretches his arms to stop individuals, including § 87(2)(b) from walking forward on the sidewalk. The incident with § 87(2)(b) unfolds and officers begin arresting him. There are several onlookers at the corner and multiple uniformed officers rush toward Lt. Dumelle and § 87(2)(b). At 28:17, § 87(2)(b) (wearing a fur-trimmed hooded jacket that says “Armed With Love” on the back) appears to see the commotion and runs in between two parked cars toward § 87(2)(b) arrest. In PO Rojas’ BWC footage (BR 48, at 01:54), as § 87(2)(b) is running, he places his right hand onto Sgt. Saeed’s left shoulder or upper arm. Sgt. Saeed’s back is initially turned to § 87(2)(b) and he then turns around and grabs § 87(2)(b). PO Rojas grabs § 87(2)(b) arm. At 01:57, § 87(2)(b) is grabbing Sgt. Saeed’s right jacket sleeve, and it appears that Sgt. Saeed is holding onto § 87(2)(b) while they are facing each other, with Sgt. Saeed’s body angled forward toward § 87(2)(b) and § 87(2)(b) body angled backward. It is not clear whether § 87(2)(b) tries pulling Sgt. Saeed down to the ground. An officer does not punch § 87(2)(b) face at this point. In Sgt. Saeed’s BWC footage from this timeframe, Sgt. Saeed repeatedly tells § 87(2)(b) “Back up” (BR 38, at 05:16).

In sum, the BWC footage shows that PO Abreugerez grabs § 87(2)(b) from behind, places his arms underneath § 87(2)(b) arms, and wraps his arms around § 87(2)(b). § 87(2)(b) bends over and asks the officers what they are doing. PO Loporto, Det. Trim, PO Delarosa, and PO Todman grab or reach for § 87(2)(b) arms (BR 49, at 01:20; BR 39, at 05:22; BR 50, at 05:06). § 87(2)(b) appears to be moving around, though it is not clearly visible due to the camera angle.

and chaotic nature of the struggle. Det. Trim tells § 87(2)(b) to get on the ground and appears to push down on his back, while § 87(2)(b) tenses his body (BR 51, at 01:33). There continues to be a great deal of movement among § 87(2)(b) and the officers. In PO Mays' BWC footage, Sgt. Saeed punches § 87(2)(b) twice with a closed fist, which appears to be aimed toward § 87(2)(b) torso or lower body (BR 52, at 01:45). PO Loporto punches § 87(2)(b) once, which also appears aimed toward § 87(2)(b) torso or lower body (BR 05, at 28:30). There are still many onlookers in the area, and one civilian yells at the officers and gets very close to the arrest (BR 39, at 05:32).

In PO Loporto's BWC footage (BR 39, at 05:27), § 87(2)(b) is on the ground in a seated position, with his knees bent and underneath his body, though it is not clear how he ended up on the ground. An officer tells § 87(2)(b) to put his arms behind his back and to stop resisting. There continues to be a chaotic struggle. Another officer repeatedly tells § 87(2)(b) to stop resisting. PO Delarosa, PO Abreugerez, Det. Trim, and PO Nuzzi hold § 87(2)(b) arms and officers get one handcuff onto § 87(2)(b) wrist, but § 87(2)(b) holds onto his own wrist so that the officers cannot cuff his other wrist. PO Nuzzi tells § 87(2)(b) "Let go of your wrist," and punches § 87(2)(b) once, which appears to be aimed at his side or lower back (BR 53, at 03:51). The officers handcuff § 87(2)(b) within the next few seconds and immediately lift him into an upright position. Officers do not punch or kick § 87(2)(b) after he is handcuffed. The footage does not depict § 87(2)(b) head hitting the ground, nor does it show Det. Trim using any hand strikes against § 87(2)(b).

Sgt. Saeed stated that while he was on the sidewalk, § 87(2)(b) "bum rush[ed]" him, and pushed him around his upper shoulder and torso area. § 87(2)(b) tried to "run through" Sgt. Saeed as if they were playing football. Sgt. Saeed told § 87(2)(b) to move back. § 87(2)(b) then yanked Sgt. Saeed's shoulder and hoodie and tried pulling him down. Sgt. Saeed pushed § 87(2)(b) off him. As soon as § 87(2)(b) put his hands on him, Sgt. Saeed considered § 87(2)(b) to be under arrest. § 87(2)(b) was likely running toward where the other officers were, and his actions constituted assaulting a police officer, disorderly conduct, and OGA. § 87(2)(b) resisted insofar as he locked his arms and shifted his body away from the officers. Sgt. Saeed used hand strikes to § 87(2)(b) torso or side, which he believed was the minimal amount of force needed to take him into custody. Sgt. Saeed did not recall how many times he punched § 87(2)(b). Sgt. Saeed tried to take § 87(2)(b) to the ground, but it was a combination of a forcible takedown and everyone's momentum that brought § 87(2)(b) and the officers to the ground. Sgt. Saeed did not recall whether PO Loporto, Det. Trim, or PO Nuzzi punched § 87(2)(b). Sgt. Saeed denied punching § 87(2)(b) after he was handcuffed, and he did not see any other officer do so. Sgt. Saeed did not recall whether he or any officer kicked § 87(2)(b).

Det. Trim's and PO Nuzzi's statements (BR 63-64) were consistent with the BWC footage. Det. Trim stated that § 87(2)(b) resisted by flailing his arms, kicking his feet, and not allowing the officers to handcuff him. Det. Trim used one closed-fist hand strike to § 87(2)(b) torso or chest to gain compliance because § 87(2)(b) was actively resisting and Det. Trim did not want to get hit by him. Det. Trim did not recall whether any other officers used hand strikes. Det. Trim did not see any officers kick § 87(2)(b) and Det. Trim denied kicking § 87(2)(b).

PO Nuzzi stated that § 87(2)(b) resisted by placing his arms underneath his body and grabbing his own wrist, to prevent the officers from handcuffing his other wrist. PO Nuzzi used one hand strike and hit § 87(2)(b) ribs to gain compliance and get him to let go of his wrist. PO Nuzzi did not see any other officer use hand strikes against § 87(2)(b). PO Nuzzi denied using any hand strikes against § 87(2)(b) after he was handcuffed. PO Nuzzi denied kicking § 87(2)(b) after he was handcuffed, and he did not see any officer kick § 87(2)(b) after he was handcuffed.

It was not necessary to interview any additional officers to reach dispositions for these allegations.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. Any use of force must be reasonable under the circumstances and not excessive. In determining whether the use of force is reasonable, members of the service should consider the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, officers, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of officers; size, age, and condition of the subject in comparison to the officers; subject's violent history; presence of hostile crowd or agitators; and subject apparently under the influence of a stimulant or narcotic that would affect pain tolerance or increase the likelihood of violence. Patrol Guide Procedure 221-01 (BR 34).

While the footage does not show whether § 87(2)(b) tried pulling Sgt. Saeed to the ground, at the very least, § 87(2)(b) grabbed onto Sgt. Saeed's right jacket sleeve. § 87(2)(b) continually actively resisted by bending over, tensing his body, moving around, and holding his wrist so that the officers could not handcuff him. Additionally, there was another arrest occurring simultaneously § 87(2)(g)

It is therefore recommended that **Allegations N-Y** be closed as **within NYPD guidelines.**

Allegation (AA) Discourtesy: In front of 273 Kingston Avenue in Brooklyn, Lieutenant Adam Dumelle spoke discourteously to an individual.

The investigation was unable to identify the civilian involved in this interaction.

Lt. Dumelle initially did not recall making the above-described profane remarks. After watching his BWC footage several times, Lt. Dumelle acknowledged hearing his voice speaking, but he did not hear himself saying, “Fuck you,” and he did not know what he was saying at that point. He confirmed that the footage captured him saying, “Get out of my fucking face.” He made that remark because the unidentified bystander was very close to him, and he wanted to emphasize the seriousness of his command and to get the bystander to back up.

The investigation determined that Lt. Dumelle said, “Fuck you” to the individual, given that the footage depicted him making the remark, Lt. Dumelle acknowledged that he was the officer who was speaking at that point, and the individual was echoing the words that Lt. Dumelle had just said to him when he responded, “What? Fuck me?”

The NYPD’s mission statement details that officers pledge to maintain a higher standard of integrity than is generally expected of others, and to render services with courtesy and civility. NYPD Patrol Guide (BR 65). Officers are prohibited from engaging in conduct prejudicial to good order, efficiency, or discipline of the Department. Administrative Guide Procedure 304-06 (BR 66). The NYPD’s disciplinary decisions “have consistently held that when a police officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation, the police officer’s verbal slip does not rise to the level of actionable misconduct.” NYPD Disciplinary Case No. 76927/04 (2004) (BR 67).

§ 87(2)(g)

It is therefore recommended that **Allegation AA** be closed as **substantiated**.

Allegation (AB) Abuse of Authority: En route to the 71st Precinct stationhouse, Sergeant Allison Casanovas refused to provide her name to § 87(2)(b)

Allegation (AC) Abuse of Authority: En route to the 71st Precinct stationhouse, Sergeant Allison Casanovas refused to provide her shield number to § 87(2)(b)

Allegation (AD) Abuse of Authority: En route to the 71st Precinct stationhouse, Police Officer Oscar Portillo refused to provide his name to § 87(2)(b)

Allegation (AE) Abuse of Authority: En route to the 71st Precinct stationhouse, Police Officer Oscar Portillo refused to provide his shield number to § 87(2)(b)

§ 87(2)(a) recounted that he requested Sgt. Casanovas’ and PO Portillo’s names and shield numbers approximately ten times as they transported him to the stationhouse, which they did not provide. § 87(2)(a)

BWC footage shows Sgt. Casanovas, PO Portillo, and PO Zoe Blue, of the 71st Precinct, transporting § 87(2)(b) to the stationhouse (BR 54, at 02:38; BR 55, at 00:10; BR 56, at 04:04; BR 57, at 00:00). § 87(2)(b) asks why he is being arrested but does not ask the officers for their names or shield numbers inside the vehicle.

It was not necessary to interview officers to reach dispositions for these allegations.

Video footage shows that § 87(2)(b) did not ask Sgt. Casanovas or PO Portillo for their names or shield numbers. It is therefore recommended that **Allegations AB-AE** be closed as **unfounded**.

Allegation (AF) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Jeffrey Rosa strip-searched § 87(2)(b)

Allegation (AG) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Jeffrey Rosa improperly used his body-worn camera.

It is undisputed that PO Rosa strip-searched § 87(2)(b) at the stationhouse. The command log detailed that PO Rosa strip searched § 87(2)(b) at the stationhouse, which was authorized by Sgt. Saeed (BR 68). The arrest report narrative also detailed that Sgt. Saeed authorized a strip search of § 87(2)(b) at the stationhouse (BR 01).

§ 87(2)(a)

TARU footage shows § 87(2)(b) engaging in a hand-to-hand transaction (BR 07, at 13:26). After a male individual approaches and appears to take out money from his pocket, § 87(2)(b) reaches both hands toward his pants pockets, then turns away. At 13:35, § 87(2)(b) turns back toward the camera and his left hand is briefly inside the front of his sweatpants before he takes it out. His right hand is momentarily not visible. The male individual hands an object to § 87(2)(b) and § 87(2)(b) appears to take an object out of his right pants pocket, which he hands to the individual. Approximately ten minutes later, PO Rosa, Sgt. Saeed, and PO Loporto arrive and arrest § 87(2)(b).

PO Rosa's, Sgt. Saeed's, and PO Loporto's first BWC videos end as they walk toward their vehicle after the arrests (BR 38-40). PO Rosa's BWC footage ends at 5:59 p.m. Sgt. Saeed's second BWC video begins approximately three minutes later (with the one minute audio-free buffer period), as he, PO Rosa, and PO Loporto arrive at the stationhouse. The audio begins once Sgt. Saeed gets behind the stationhouse desk. Sgt. Saeed is not captured on BWC footage providing authorization for a strip search of § 87(2)(b). PO Rosa, along with PO Walsh and PO Russo, processes § 87(2)(b)'s arrest by searching him, removing his property, and documenting his pedigree information (BR 58, at 07:47; BR 59, at 06:45). PO Rosa does not activate his BWC at the stationhouse until a few minutes later once § 87(2)(b) is at the holding cell area (BR 60, at 01:00).

In PO Rosa's BWC footage (BR 60, at 01:00), PO Rosa leads § 87(2)(b) to a corner at the end of the general holding cell area. § 87(2)(b) stands by a large window through which several officers near the stationhouse desk are visible. PO Rosa has § 87(2)(b) take off his layers one at a time, including his vest, sweatshirt, t-shirt, socks, and shoes, and PO Rosa checks each article of clothing. PO Loporto and PO Russo are also present, as well as an officer who watches from the other side of the window. At 02:11, § 87(2)(b) shows PO Rosa that he is wearing sweatpants, long johns, and boxer brief underwear. PO Rosa tells § 87(2)(b) to take off his sweatpants. After removing his outer articles of clothing, § 87(2)(b) is left wearing long johns over boxer briefs and a tank top. At 03:10, PO Rosa says, "Alright look, I got pills on you already, you have anything else in there you're not supposed to have?" § 87(2)(b) replies no. PO Rosa asks, "You sure? You don't have nothing in those pants?" § 87(2)(b) spontaneously begins to pull down his long johns. PO Rosa says, "Listen – alright take it off." § 87(2)(b) is now left wearing only his tank top and boxer briefs. PO Rosa does not appear to find anything concealed in § 87(2)(b) clothing. At 03:42, PO Rosa tells § 87(2)(b) he needs to go to the bathroom so they can check his underwear. § 87(2)(b) initially says that he will not do that, but PO Rosa and the other officers go back and forth with § 87(2)(b).

§ 87(2)(b) § 87(2)(b) starts pulling his underwear away from his body to show that he does not have anything on him, but the officers stop him and tell him to go to the bathroom. § 87(2)(b) says, “Y’all did all this right here, why y’all—why can’t do right here now [*sic*]...now you care who’s staring?”

At 04:38, PO Rosa and the officers lead § 87(2)(b) to a bathroom at the other end of the holding cell area, which is past two holding cells with a couple of civilians inside, past § 87(2)(b) who is waiting to be lodged in a holding cell, and past a few additional officers, including PO Walsh. Two Field Intelligence Officers, Det. Mirsad Radoncic and PO Jason Schreckenstein, are now present for the search. At 04:49, inside the bathroom, PO Rosa tells § 87(2)(b) “Do it yourself.” § 87(2)(b) partially pulls down his underwear, coughs, and then moves his underwear around to show that he does not have anything on him. The officers do not touch § 87(2)(b). § 87(2)(b) leaves the bathroom and sits down on a bench in his underwear, surrounded by multiple officers. PO Rosa gives § 87(2)(b) some of his clothing to get dressed before lodging him in a holding cell. Sgt. Saeed is not present during any part of this interaction.

As noted above, PO Rosa stated that he observed § 87(2)(b) engage in hand-to-hand transactions in the ARGUS footage. PO Rosa saw that individuals approached § 87(2)(b) he reached into his pants and took out narcotics, placed the narcotics in one of his pants pockets, looked around, took U.S. currency from the individual, and then engaged in a hand-to-hand transaction. § 87(2)(b) reached inside his garments, beyond the inner-most layer of clothing, toward the front and middle of his body. PO Rosa was not sure which layer of clothing he went into. PO Rosa suspected that § 87(2)(b) was exchanging narcotics based on his training and experience, based on § 87(2)(b) exchanging U.S. currency, and based on § 87(2)(b) body language. As PO Rosa, Sgt. Saeed, and PO Loporto attempted to arrest § 87(2)(b) resisted by tensing his arms, flailing his arms, trying to get away from the officers, and keeping his hands clasped in front of his body. PO Rosa recovered ecstasy pills from the entryway of the store and found two or three bags of marijuana on the ground, both of which were very close to where § 87(2)(b) had been arrested.

While they were driving to the stationhouse, PO Rosa informed Sgt. Saeed that he saw § 87(2)(b) in the ARGUS footage going into his pants to retrieve the narcotics. Sgt. Saeed authorized a strip search of § 87(2)(b) at the stationhouse. PO Rosa did not recall exactly where they were when Sgt. Saeed authorized the strip search, but it was somewhere between walking from their vehicle to the stationhouse and first arriving at the desk. PO Rosa believed that the strip search authorization was based on him having informed Sgt. Saeed that § 87(2)(b) went into his pants while making the narcotics transactions. PO Rosa did not recall why he did not activate his BWC while interacting with § 87(2)(b) at the front desk, but it was possible that he forgot to hit the button.

PO Rosa’s account of the strip search was consistent with the BWC footage. PO Rosa stated that he did not intend for § 87(2)(b) to take off his long johns when he asked him if he had anything in them that he was not supposed to have. PO Rosa was going to take § 87(2)(b) to the bathroom in his long johns to continue the search, but § 87(2)(b) removed his long johns of his “own will.” PO Rosa did not stop § 87(2)(b) from taking off his long johns because § 87(2)(b) had already started removing them. PO Rosa also knew that § 87(2)(b) would only be allowed to wear one pair of pants once he was lodged in a cell, and he thought that § 87(2)(b) would be more comfortable wearing his boxers and sweatpants instead of the long johns and sweatpants. PO Rosa did not have any privacy concerns about § 87(2)(b) being in his underwear at that point. He considered the corner of the holding cell area where § 87(2)(b) began to undress to be a private area because other prisoners in the cells could not see him in that position. He acknowledged, however, that a bathroom has the utmost amount of privacy. PO Rosa similarly did not believe there were any privacy issues with § 87(2)(b) walking through the cell area in his boxers to the

§ 87(2)(g)

It is therefore recommended that **Allegation AF** be closed as **substantiated**.

The BWC footage shows that PO Rosa did not activate his BWC while processing § 87(2)(b) arrest at the stationhouse desk, § 87(2)(g)

It is therefore recommended that **Allegation AG** be closed as **substantiated**.

Allegation (AH) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Zhane Walsh threatened § 87(2)(b) with the use of force.

Allegation (AI) Offensive Language: At the 71st Precinct stationhouse, Police Officer Zhane Walsh made remarks to § 87(2)(b) based upon race.

Allegation (AJ) Offensive Language: At the 71st Precinct stationhouse, Police Officer Zhane Walsh made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (AK) Discourtesy: At the 71st Precinct stationhouse, Police Officer Zhane Walsh spoke discourteously to § 87(2)(b)

PO Walsh's BWC footage shows that she and PO Russo transported § 87(2)(b) to the stationhouse (BR 59, at 02:17). At 05:12, § 87(2)(b) yells at PO Walsh and PO Russo, questions why he was arrested, moves around, and continually pulls away from them as they lead him inside. At the desk, § 87(2)(b) mostly calms down but continues questioning the officers about why he was arrested. At 10:53, officers lead § 87(2)(b) to the holding cell area. At 17:35, officers lodge § 87(2)(b) in a holding cell and PO Walsh deactivates her BWC. There is one civilian in the holding cell with § 87(2)(b) PO Shawn Wilson and PO Ashley Thomas, of the 71st Precinct, are standing in the holding cell area with § 87(2)(b) waiting to lodge him in a cell. A few seconds after PO Walsh deactivates her BWC, she tells § 87(2)(b) "Next time I see you, Imma whoop your ass" (BR 61, at 17:44). § 87(2)(b) replies, "I want you to." As PO Walsh walks away from § 87(2)(b) holding cell, she says, "You're a bitch ass nigga, you're a bitch" (BR 46, at 17:54).

As discussed, the investigation was unable to get a statement from § 87(2)(b) No civilians alleged that PO Walsh made these remarks.

PO Walsh's statement was generally consistent with the BWC footage (BR 71). She recounted that § 87(2)(b) "fought" her and PO Russo and resisted by refusing to walk into the stationhouse. PO Walsh did not know why § 87(2)(b) had been arrested. PO Walsh told § 87(2)(b) "Next time I see you, Imma whoop your ass," because § 87(2)(b) had just fought with her in the hallway, and she was angry at the situation. There was no reason for PO Walsh to use force against § 87(2)(b) and she did not intend to use force against him at that point. As PO Walsh walked away from the holding cell, she called § 87(2)(b) a "bitch nigga." PO Walsh made the remark out of frustration and in response to something that § 87(2)(b) said, but she did not recall what he said.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 33). The NYPD's mission statement details that officers pledge to maintain a higher standard of integrity than is generally expected of others, and to render services with courtesy and civility. NYPD Patrol Guide (BR 65). Officers are prohibited from engaging in conduct prejudicial to good order, efficiency, or discipline of the Department. Officers are also prohibited from using

discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability. Administrative Guide Procedure 304-06 (BR 66).

§ 87(2)(g)

It is therefore recommended that **Allegation AH** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations AI-AK** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (BR 72-73).
- § 87(2)(b)
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- Sgt. Saeed has been a member of the NYPD for seven years and has been a subject in 12 CCRB cases and 40 allegations, two of which were substantiated:

- 201808927 involved a substantiated allegation of seizure of property against Sgt. Saeed. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - 202104257 involved a substantiated allegation of discourteous action. The Board recommended Command Discipline A but the NYPD took no disciplinary action.
 - Five complaints against Sgt. Saeed remain under investigation.
 - § 87(2)(g) [REDACTED]
- PO Rosa has been a member of the NYPD for seven years and has been a subject in four CCRB cases and 16 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Loporto has been a member of the NYPD for four years and has been a subject in six CCRB cases and 20 allegations, one of which was substantiated:
 - § 87(2)(g) [REDACTED]
 - Four complaints against PO Loporto remain under investigation.
 - § 87(2)(g) [REDACTED]
- Lt. Dumelle has been a member of the NYPD for 16 years and has been a subject in 25 CCRB cases and 63 allegations, 19 of which were substantiated:
 - 201011266 involved substantiated allegations of frisk and search of person against Lt. Dumelle. The Board recommended Command Discipline and the NYPD imposed Instructions.
 - 201409828 involved substantiated allegations of physical force, stop, frisk, and search of person against Lt. Dumelle. The Board recommended Charges. Lt. Dumelle was found not guilty at the APU trial and thus the NYPD did not impose discipline.
 - 202000478 involved substantiated allegations of strip search, threat of force, unlawful arrest, discourteous word, discourteous action, false official statement, and misleading official statement against Lt. Dumelle. The Board recommended Charges but the case was not tried by APU due to the SOL expiring.
 - Two complaints against Lt. Dumelle remain under investigation.
 - § 87(2)(g) [REDACTED]
- PO Bejaran has been a member of the NYPD for three years and has been a subject in two CCRB cases and five allegations, none of which were substantiated. One complaint against PO Bejaran remains under investigation. § 87(2)(g) [REDACTED]
- PO Colwell has been a member of the NYPD for three years and has been a subject in four CCRB cases and seven allegations, none of which were substantiated. One complaint against PO Colwell remains under investigation. § 87(2)(g) [REDACTED]
- PO Islam has been a member of the NYPD for two years and this is the first CCRB complaint to which he has been a subject.
- PO Frisina has been a member of the NYPD for eight years and has been a subject in two CCRB cases and two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Beloy has been a member of the NYPD for one year and has been a subject in one CCRB case and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]

- PO Abreguez has been a member of the NYPD for five years and has been a subject in five CCRB cases and nine allegations, one of which was substantiated:
 - § 87(2)(g)
 - Three complaints against PO Abreguez remain under investigation.
 - § 87(2)(g)
- Det. Trim has been a member of the NYPD for 11 years and has been a subject in six CCRB cases and 13 allegations, three of which were substantiated:
 - 201907553 involved substantiated allegations of stop, gun pointed, and false official statement against Det. Trim. The Board recommended Charges. Det. Trim was found guilty at the APU trial and the NYPD imposed a forfeiture of 30 vacation days.
 - § 87(2)(g)
- PO Delarosa has been a member of the NYPD for seven years and has been a subject in eight CCRB cases and 18 allegations, two of which were substantiated:
 - 202105016 involved substantiated allegations of a frisk and vehicle search against PO Delarosa. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
 - Three complaints against PO Delarosa remain under investigation.
 - § 87(2)(g)
- PO Nuzzi has been a member of the NYPD for three years and has been a subject in ten CCRB cases and 30 allegations, none of which were substantiated. Seven complaints against PO Nuzzi remain under investigation. § 87(2)(g)
- PO Rojas has been a member of the NYPD for nine years and has been a subject in two CCRB cases and three allegations, none of which were substantiated. § 87(2)(g)
- PO Todman has been a member of the NYPD for 12 years and has been a subject in four CCRB cases and five allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Casanovas has been a member of the NYPD for 13 years and has been a subject in five CCRB cases and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Portillo has been a member of the NYPD for one year and this is the first CCRB complaint to which he has been a subject.
- PO Walsh has been a member of the NYPD for two years and has been a subject in three CCRB cases and three allegations, none of which were substantiated. One complaint against PO Walsh remains under investigation. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming assault, wrongful search and seizure, excessive detention, emotional distress, and bodily injury, seeking \$2,000,000 as redress (BR 75). § 87(2)(b)
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming assault, wrongful search and seizure, excessive detention, emotional distress, and bodily injury, seeking \$2,000,000 as redress (BR 76). § 87(2)(b)

